



Bill Number: S.B. 1205

Fernandez Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Requires a motor vehicle booting service or a parking management company to provide a motor vehicle owner with a dispute process for a motor vehicle booting dispute.
2. Requires a filed dispute to be decided by an officer of an authorized agent of the motor vehicle booting service or the parking management company.
3. Requires the motor vehicle booting service or the parking area management company to provide notice of the decision of the dispute to the motor vehicle owner within 60 days after the dispute is filed.
4. Defines *parking area* as any part of private property that is regularly used, intended for use or clearly marked for motor vehicle parking for a fee, including:
 - a) surface area parking;
 - b) parking garages;
 - c) parking structures; and
 - d) designated commercial parking zones.
5. Makes conforming changes.

FERNANDEZ FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1205
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 9, chapter 4, article 8, Arizona Revised Statutes,
3 is amended by adding section 9-500.54, to read:

4 9-500.54. Motor vehicle booting; regulation; notice;
5 restrictions; fees; violation; classification;
6 definitions

7 A. A CITY OR TOWN MAY NOT ADOPT ANY LAW, ORDINANCE OR OTHER
8 REGULATION THAT PROHIBITS BOOTING A MOTOR VEHICLE THAT IS LOCATED ON
9 PRIVATE PROPERTY WITHOUT THE PERMISSION OF THE OWNER OR OPERATOR OF THE
10 MOTOR VEHICLE.

11 B. A CITY OR TOWN MAY ADOPT A LAW, ORDINANCE OR OTHER REGULATION
12 THAT REGULATES THE RATES THAT A MOTOR VEHICLE BOOTING SERVICE MAY CHARGE
13 THAT ARE CONSISTENT WITH SUBSECTION [F] [G] OF THIS SECTION. THE CITY OR
14 TOWN MAY ADOPT SIGNAGE REQUIREMENTS AND BOOTED MOTOR VEHICLE RELEASE
15 PRACTICES THAT ARE CONSISTENT WITH SUBSECTIONS C AND E OF THIS SECTION IF
16 THE MOTOR VEHICLE THAT IS SUBJECT TO BOOTING IS LOCATED ON PRIVATE
17 PROPERTY WITHIN THE BOUNDARIES OF THE CITY OR TOWN.

18 C. THE OWNER OR AGENT OF THE OWNER OF THE PRIVATE PROPERTY IS
19 DEEMED TO HAVE GIVEN CONSENT TO UNRESTRICTED PARKING BY THE GENERAL PUBLIC
20 IN ANY PARKING AREA OF THE PRIVATE PROPERTY UNLESS THE PARKING AREA IS
21 POSTED WITH SIGNS AS PRESCRIBED BY THIS SUBSECTION THAT ARE CLEARLY
22 VISIBLE AND READABLE FROM ANY POINT WITHIN THE PARKING AREA AND AT EACH
23 ENTRANCE. THE SIGN MUST CONTAIN, AT A MINIMUM, THE FOLLOWING:

24 1. RESTRICTIONS ON PARKING.

25 2. DISPOSITION OF MOTOR VEHICLES FOUND IN VIOLATION OF THE PARKING
26 RESTRICTIONS.

1 3. THE MAXIMUM COST TO THE OWNER OR OPERATOR OF THE MOTOR VEHICLE
2 FOR REMOVAL OF THE BOOTING DEVICE.

3 4. A TELEPHONE NUMBER AND ADDRESS FOR THE VEHICLE BOOTING SERVICE
4 FOR ASSISTANCE WITH BOOT REMOVAL.

5 D. A MOTOR VEHICLE BOOTING SERVICE MAY BOOT A MOTOR VEHICLE ON
6 PRIVATE PROPERTY IF BOTH OF THE FOLLOWING APPLY:

7 1. THE MOTOR VEHICLE BOOTING SERVICE RECEIVES A REQUEST FROM A LAW
8 ENFORCEMENT AGENCY OR HAS OBTAINED THE WRITTEN PERMISSION FROM THE OWNER
9 OR THE AGENT OF THE OWNER OF THE PRIVATE PROPERTY THAT COMPLIES WITH
10 SUBSECTION C OF THIS SECTION.

11 2. THE MOTOR VEHICLE BOOTING SERVICE DOES NOT ACT AS THE AGENT OF
12 THE OWNER OF THE PRIVATE PROPERTY EXCEPT TO THE EXTENT REQUIRED TO COLLECT
13 UNPAID PARKING FEES.

14 E. A MOTOR VEHICLE BOOTING SERVICE SHALL RELEASE A BOOTED MOTOR
15 VEHICLE WITHIN THIRTY MINUTES AFTER RECEIVING A REQUEST FOR THE MOTOR
16 VEHICLE'S RELEASE. A MOTOR VEHICLE BOOTING SERVICE SHALL HAVE THE ABILITY
17 TO RELEASE A BOOTED MOTOR VEHICLE TWENTY-FOUR HOURS A DAY, SEVEN DAYS A
18 WEEK. ALL CHARGES FOR THE BOOTING OF THE MOTOR VEHICLE AND ALL UNPAID
19 PARKING FEES MUST BE PAID BEFORE THE RELEASE OF THE BOOTED MOTOR VEHICLE.

20 [F. A MOTOR VEHICLE BOOTING SERVICE OR A PARKING AREA MANAGEMENT
21 COMPANY SHALL PROVIDE A MOTOR VEHICLE OWNER WITH A DISPUTE PROCESS FOR A
22 MOTOR VEHICLE BOOTING DISPUTE. IF THE OWNER OF A BOOTED MOTOR VEHICLE
23 FILES A DISPUTE REGARDING THE BOOTING OF THE MOTOR VEHICLE, THE DISPUTE
24 SHALL BE DECIDED BY AN OFFICER OF AN AUTHORIZED AGENT OF THE MOTOR VEHICLE
25 BOOTING SERVICE OR OF THE PARKING AREA MANAGEMENT COMPANY. THE MOTOR
26 VEHICLE BOOTING SERVICE OR THE PARKING AREA MANAGEMENT COMPANY SHALL
27 PROVIDE NOTICE OF THE DECISION OF THE DISPUTE TO THE MOTOR VEHICLE OWNER
28 WITHIN SIXTY DAYS AFTER THE MOTOR VEHICLE BOOTING DISPUTE IS FILED.]

29 ~~[F.]~~ [G.] A MOTOR VEHICLE BOOTING SERVICE MAY CHARGE AT LEAST \$90
30 BUT NOT MORE THAN \$150 FOR BOOTING A MOTOR VEHICLE. THE STATUTORY MOTOR
31 VEHICLE BOOTING SERVICE FEES FOR BOOTING A MOTOR VEHICLE MUST
32 AUTOMATICALLY BE ADJUSTED EVERY THREE YEARS BASED ON THE CONSUMER PRICE
33 INDEX AS PUBLISHED BY THE UNITED STATES DEPARTMENT OF LABOR, BUREAU OF
34 LABOR STATISTICS. A MOTOR VEHICLE BOOTING SERVICE MAY NOT CHARGE AN
35 ADDITIONAL FEE FOR THE USE OF A CREDIT CARD TO PAY BOOTING FEES AND UNPAID
36 PARKING FEES. IF A MOTOR VEHICLE BOOTING SERVICE RELEASES A BOOTED MOTOR
37 VEHICLE AFTER THIRTY MINUTES BUT BEFORE SIXTY MINUTES OF RECEIVING A
38 REQUEST TO RELEASE THE MOTOR VEHICLE, THE MOTOR VEHICLE BOOTING SERVICE
39 SHALL REDUCE THE MOTOR VEHICLE BOOTING FEE BY FIFTY PERCENT. IF A MOTOR
40 VEHICLE BOOTING SERVICE RELEASES A BOOTED VEHICLE AFTER SIXTY MINUTES OF
41 RECEIVING A REQUEST TO RELEASE THE MOTOR VEHICLE, THE MOTOR VEHICLE
42 BOOTING SERVICE MAY NOT CHARGE A FEE FOR THE RELEASE OF THE MOTOR
43 VEHICLE. A MOTOR VEHICLE BOOTING SERVICE MAY CHARGE ONLY ONE FEE FOR
44 BOOTING A COMBINATION OF MOTOR VEHICLES. A MOTOR VEHICLE BOOTING SERVICE
45 MAY CHARGE AN ADDITIONAL FEE FOR BOOTING A TRAILER OR OTHER VEHICLE THAT

1 IS SEPARATED FROM THE MOTOR VEHICLE THAT IS THE TRAILER OR OTHER VEHICLE'S
2 METHOD OF TRANSPORTATION. A MOTOR VEHICLE THAT HAS BEEN BOOTED WITH A
3 BOOTING DEVICE THAT CAN BE REMOVED BY THE OWNER OR OPERATOR OF THE MOTOR
4 VEHICLE ON THE PAYMENT OF BOOTING FEES AND UNPAID PARKING FEES WILL BE
5 DEEMED RELEASED TO THE MOTOR VEHICLE'S OWNER OR OPERATOR ONCE THE MOTOR
6 VEHICLE'S OWNER OR OPERATOR HAS BEEN PROVIDED THE ABILITY TO REMOVE THE
7 BOOTING DEVICE.

8 ~~[G.]~~ [H.] IF THE OWNER OR OPERATOR OF A MOTOR VEHICLE
9 INTENTIONALLY DAMAGES A BOOTING DEVICE OR DOES NOT RETURN A BOOTING DEVICE
10 TO THE MOTOR VEHICLE BOOTING SERVICE OR TO A CLEARLY DESIGNATED AREA
11 ON-SITE AT THE MOTOR VEHICLE BOOTING SERVICE STORAGE AREA, THE MOTOR
12 VEHICLE'S OWNER OR OPERATOR MAY BE SUBJECT TO AN ADDITIONAL FEE OF NOT
13 MORE THAN \$250.

14 ~~[H.]~~ [I.] A MOTOR VEHICLE BOOTING SERVICE MAY NOT BOOT ANY OF THE
15 FOLLOWING:

- 16 1. A MOTOR VEHICLE THAT IS DISPLAYING A TAX-EXEMPT LICENSE PLATE.
- 17 2. A MARKED EMERGENCY MOTOR VEHICLE.
- 18 3. A MOTOR VEHICLE WITH AN OCCUPANT.
- 19 4. A MOTOR VEHICLE THAT REMAINS PARKED FOR LESS THAN FIFTEEN
20 MINUTES AFTER THE PAID PARKING PERIOD THAT IS APPLICABLE TO THAT MOTOR
21 VEHICLE EXPIRES.

22 ~~[I.]~~ [J.] A MOTOR VEHICLE BOOTING SERVICE SHALL MAINTAIN A
23 TIME-STAMP METHOD OF RECORDING CALLS THAT REQUEST THE RELEASE OF A BOOTED
24 MOTOR VEHICLE. THE MOTOR VEHICLE BOOTING SERVICE SHALL MAINTAIN THE CALL
25 RECORDS FOR A MINIMUM OF NINETY DAYS. THE MOTOR VEHICLE BOOTING SERVICE
26 SHALL MAKE AVAILABLE TO THE CITY OR TOWN AT NO CHARGE THE RECORDING OF A
27 CALL WITHIN FIVE DAYS AFTER RECEIVING A REQUEST FROM THE CITY OR TOWN.

28 ~~[J.]~~ [K.] A PERSON THAT VIOLATES SUBSECTION D, E, ~~[F.]~~ G[.] [H] OR
29 [H] [I] OF THIS SECTION IS GUILTY OF A CLASS 2 MISDEMEANOR.

30 ~~[K.]~~ [L.] THIS SECTION APPLIES ONLY TO SERVICES PERFORMED WHILE A
31 PERSON IS ENGAGED IN THE ACTIVITIES OF A MOTOR VEHICLE BOOTING SERVICE.

32 ~~[L.]~~ [M.] THIS SECTION DOES NOT APPLY TO ABANDONED OR JUNK
33 VEHICLES DISPOSED OF PURSUANT TO TITLE 28, CHAPTER 11.

34 ~~[M.]~~ [N.] FOR THE PURPOSES OF THIS SECTION:

35 1. "BOOT" OR "BOOTING" MEANS TO IMMOBILIZE A MOTOR VEHICLE BY THE
36 USE OF A MECHANICAL DEVICE THAT IS ATTACHED TO THE TIRE OR WHEEL OR OTHER
37 PART OF THE MOTOR VEHICLE.

38 2. "MOTOR VEHICLE BOOTING SERVICE" MEANS ANY PERSON THAT
39 COMMERCIALY OFFERS BOOT OR BOOTING SERVICES OF A MOTOR VEHICLE THAT IS
40 LOCATED ON PRIVATE PROPERTY WITHOUT THE PERMISSION OF THE OWNER OR
41 OPERATOR OF THE MOTOR VEHICLE.

42 [3. "PARKING AREA":

43 (a) MEANS ANY PART OF PRIVATE PROPERTY THAT IS REGULARLY USED OR
44 INTENDED FOR USE OR CLEARLY MARKED FOR MOTOR VEHICLE PARKING FOR A FEE.

Senate Amendments to S.B. 1205

1 (b) INCLUDES:
2 (i) SURFACE AREA PARKING LOTS.
3 (ii) PARKING GARAGES.
4 (iii) PARKING STRUCTURES.
5 (iv) DESIGNATED COMMERCIAL PARKING ZONES.]

6 Enroll and engross to conform

7 Amend title to conform

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02/20/2026

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